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LEGAL NOTICE

(Under Section 106 of the Transfer of Property Act, 1882, and the Maharashtra Rent Control Act, 1999)

Date: 14 September 2026
Ref. No.: RK/LN/2026/0412

BY REGISTERED POST A.D. AND EMAIL

To,
Mr. Santosh Ramesh Kadam
Flat No. 304, Shree Ganesh Apartments,
Near Station Road, Kandivali (West),
Mumbai - 400067, Maharashtra

FROM:
Mrs. Meena Vijay Rathod (Landlord)
Through her Advocate, Adv. Prakash N. Deshpande,
Office No. 12, Law Chambers, Borivali (West), Mumbai - 400092

SUBJECT: Notice for non-payment of rent, unauthorised subletting, and termination of tenancy.

Sir,

Under instructions from and on behalf of my client, Mrs. Meena Vijay Rathod, I serve upon you the following notice:

1. BACKGROUND

1.1 My client is the lawful owner of Flat No. 304, Shree Ganesh Apartments, Kandivali (West), Mumbai - 400067 ("the said premises").

1.2 By a Leave and Licence Agreement dated 1 April 2024, registered with the Sub-Registrar of Assurances, Borivali, you were let into the said premises for a period of 11 months, which was renewed on 1 March 2025 and again on 1 February 2026 on the same terms.

1.3 The monthly rent agreed was Rs. 28,000 (Rupees Twenty-Eight Thousand only), payable on or before the 5th day of each month. You paid a refundable security deposit of Rs. 1,00,000 (Rupees One Lakh only). Monthly society maintenance of Rs. 2,500 is payable by you separately.

2. DEFAULT IN PAYMENT OF RENT

2.1 You have failed to pay rent for the months of June, July and August 2026. The total arrears are Rs. 84,000, along with unpaid maintenance of Rs. 7,500 for the same period.

2.2 Despite repeated oral requests and reminders sent by WhatsApp on 12 July 2026 and 10 August 2026, you have neither paid the amount nor given any reason for the delay.

2.3 Clause 7 of the agreement states that failure to pay rent for two consecutive months entitles the Landlord to terminate the tenancy.

3. UNAUTHORISED SUBLETTING

3.1 My client has learnt that since about July 2026 you have allowed a person named Mr. Imran Sheikh and two other persons to live in the said premises and have been collecting Rs. 9,000 per person from them.

3.2 Clause 11 of the agreement expressly prohibits subletting, assigning, or parting with possession of the premises without the prior written consent of the Landlord. No such consent was sought or

given.

4. DAMAGE TO PROPERTY

4.1 During an inspection on 2 September 2026, in the presence of the society secretary, my client found that the wooden wardrobe in the master bedroom was broken, a wall in the living room had been drilled and left unrepaired, and the kitchen chimney was not working. Estimated repair cost is Rs. 22,000.

5. TERMINATION AND DEMAND

5.1 In view of the above breaches, my client hereby terminates your tenancy with effect from the expiry of 30 days from the date you receive this notice.

5.2 You are called upon, within 15 days of receiving this notice, to:

(a) pay the rent and maintenance arrears of Rs. 91,500;

(b) pay Rs. 22,000 towards repair of the damage, which may otherwise be deducted from your security deposit;

(c) stop the unauthorised occupation by third parties immediately.

5.3 You must hand over vacant and peaceful possession of the said premises, along with all keys and fixtures, on or before 14 October 2026.

5.4 If you continue to stay after that date, you will be liable to pay damages for use and occupation at Rs. 1,000 per day until possession is handed over.

5.5 The security deposit will be refunded within 30 days of handover of possession, after adjusting any dues and the cost of damage.

6. CONSEQUENCES OF NON-COMPLIANCE

If you fail to comply, my client will be forced to file a suit for recovery of possession, arrears of rent, damages and mesne profits in the competent court at Mumbai, and may also file a criminal complaint if warranted. You will be solely responsible for all costs and consequences.

7. COSTS

You are also liable to pay Rs. 5,000 as the cost of this notice.

A copy of this notice is retained in my office for record.

Yours faithfully,

(Sd/-)
Adv. Prakash N. Deshpande
Advocate for Mrs. Meena Vijay Rathod
Enrolment No. MAH/2011/4587